

Before the
FEDERAL MARITIME COMMISSION

Docket No. 24-21

PKDC, LLC

v.

CMA CGM S.A.

JOINT MOTION TO EXTEND DEADLINE

Pursuant to 46 C.F.R. Sections 502.69 and 502.102 of the Federal Maritime Commission's Rules of Practice and Procedure, Complainant PKDC, LLC ("Complainant" or "PKDC"), and Respondent CMA CGM S.A. ("Respondent" or "CMA CGM" and, collectively with PKDC, the "Parties"), by their respective undersigned counsel, hereby jointly submit this Joint Motion to Extend Deadline ("Motion") respectfully requesting a 14-day extension of the current March 31, 2025, deadline for submission of discovery disputes to the Presiding Officer..

On January 21, 2025, the Presiding Officer entered a scheduling order ("Scheduling Order") that calls for the Parties to submit any unresolved disputes concerning initial requests for production of documents ("RFPs") and interrogatories no later than March 31, 2025.

The Parties served their initial interrogatories and RFPs on February 7, 2025. PKDC served CMA CGM with 27 interrogatories and 47 RFPs, some of which contained multiple sub-parts. CMA CGM served PKDC with 19 interrogatories and 16 RFPs, some of which contained multiple sub-parts.

The Parties exchanged objections and responses to their respective interrogatories and RFPs on March 14, as required by the Scheduling Order. Given the number of interrogatories and RFPs, there are a substantial number of objections and potential disputes.

On March 17, counsel for PKDC notified counsel for CMA CGM of what PKDC counsel considers to be deficiencies in CMA CGM's responses to PKDC's discovery requests. That notice contains some proposals to narrow certain discovery requests to address objections. Counsel for CMA CGM will presently be notifying counsel for PKDC of what it considers to be deficiencies in PKDC's responses to CMA CGM's discovery requests.

Counsel for the Parties have consulted with their respective clients and are scheduled to speak on Thursday, March 26, 2025, the first date on which counsel are all available, to attempt to resolve as many disputes as possible, and to narrow any disputes that are not resolved.

Rule 102(a) of the Commission's Rules of Practice and Procedure, 46 C.F.R. Section 502.102(a), provides in relevant part: "Motions for enlargement or reduction of time for the filing of any pleading or other document, or in connection with the procedures of subpart L of this part, may be granted upon a showing of good cause." The Parties submit good cause exists in this instance.

Pursuant to 46 C.F.R. §502.141(h), it is the responsibility of the Parties to resolve to the fullest extent possible disputes relating to discovery matters. The Parties are endeavoring to fulfill that responsibility and thereby conserve the resources of both the Parties and the Commission by avoiding, or at least minimizing, the need for motions to compel. The Parties merely seek an additional 14 days in which to work to resolve and/or minimize their differences before resorting to motions practice. The Parties are concerned that the current March 31 deadline may force them to submit motions which might be unnecessary in whole or in part if they receive a small amount of additional time to attempt to resolve outstanding issues.

The Parties anticipate that granting this Motion would not require any further revisions to the Scheduling Order. Indeed, by allowing the Parties a small amount of additional time to confer

in an effort to eliminate or at least minimize the need for the Presiding Officer to rule on one or more motions to compel, granting this Motion may increase the likelihood that the Parties will be able to adhere to the deadlines in the Scheduling Order.

WHEREFORE, the Parties jointly pray that this joint Motion be granted and that the deadline for submission of unresolved discovery disputes be revised to April 14, 2025.

Dated: March 25, 2025

Respectfully submitted,

SANDLER, TRAVIS & ROSENBERG, P.A

COZEN O'CONNOR

/s/ Jason M. Kenner

Jason M. Kenner
Andrew Margolis
675 Third Avenue
Suite 1805-06
New York, NY 10017
Telephone: (212) 549-0137

Counsel for Complainant PKDC, LLC

/s/ Wayne R. Rohde

Wayne R. Rohde
Kathryn Sobotta
2001 M Street NW
Suite 500
Washington, DC 20036
Telephone: (202) 463-2507

Counsel for Respondent CMA CGM S.A.